**Urban Cowboy Rentals LLC**
1032 E 1700 S
Salt Lake City, Utah 84105
801-903-9380 · urbancowboyrentals@gmail.com

# Equipment Lease Agreement

**UCR-2028-000042**

REVIEW DRAFT

Stored effective: Jun 1, 2028

REVIEW DRAFT — NOT FOR CUSTOMER SIGNATURE — SAMPLE DATA. Known details are populated. Blank fields require completion when applicable; signatures and authorization are not recorded for these proposed terms. See the separate staff checklist for pending decisions and proposed wording changes.

## Persisted Lessee and Rental Details

**AGREEMENT**
UCR-2028-000042

**EFFECTIVE DATE**
Jun 1, 2028

**LESSEE TYPE**
business

**LESSEE LEGAL NAME**
Jordan Sample

**BUSINESS NAME**
High Desert Sample Services LLC

**EMAIL**
billing@example.test

**PHONE**
801-555-0142

**AGREEMENT BILLING ADDRESS**
4550 West Example Parkway, Salt Lake City, Utah 84104

**SERVICE / DELIVERY ADDRESS**
1000 Sample Canyon Road, Salt Lake City, Utah 84108

**FULFILLMENT**
delivery

**STORED RENTAL SUMMARY**
Jun 10, 2028 - Jun 16, 2028

This Equipment Lease Agreement (as it may be amended from time to time, this "Agreement"), dated as of Jun 1, 2028, is entered into by and between Urban Cowboy Rentals LLC, a Utah limited liability company having its principal place of business at 1032 E 1700 S, Salt Lake City, Utah 84105 ("Lessor"), and High Desert Sample Services LLC, with a recorded billing address of 4550 West Example Parkway, Salt Lake City, Utah 84104 ("Lessee," and together with Lessor, the "Parties," and each, a "Party").

WHEREAS, Lessor is in the business of leasing certain equipment, vehicles, and other assets of the Lessor; and

WHEREAS, Lessee desires to lease from Lessor, and Lessor desires to lease to Lessee the Units (as hereinafter defined).

NOW, THEREFORE, in consideration of the mutual covenants and agreements hereinafter set forth and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

**1.** Equipment. Lessor hereby leases the Units described in Exhibit A attached hereto (the "Units," and each, a "Unit") to Lessee and Lessee hereby accepts the Units for all purposes of this Agreement and leases the Units from Lessor subject to the terms and conditions of this Agreement.

**2.** Delivery Location. The delivery location under this Agreement is 1000 Sample Canyon Road, Salt Lake City, Utah 84108.

**3.** Delivery Date. The delivery date under this Agreement is _____. Lessor shall use reasonable efforts to meet the delivery date, but Lessor shall have no responsibility or liability for delays in delivery.

**4.** True Lease. The Parties intend that this Agreement shall constitute a true lease under applicable law. Lessor has title to the Units at all times. Lessee acquires no ownership, title, property, right, equity, or interest in the Units other than its leasehold interest solely as lessee subject to all the terms and conditions of this Agreement.

**5.** Security Interest. The Parties intend and agree that, if this Agreement is recharacterized under applicable law as a secured financing or a lease intended for security, this Agreement shall be deemed a security agreement and Section 1 hereof shall be deemed to grant Lessor by Lessee a lien on and first priority security interest in the Units and all proceeds thereof, to secure the payment of Lessee's obligations under this Agreement. Lessor and Lessee each agree to execute, acknowledge, deliver, file, and record, or cause to be executed, acknowledged, delivered, filed, and recorded such further documents (including without limitation UCC financing statements), and to do all such things and acts, necessary to ensure that such security interest would be a perfected first priority security interest under applicable law.

**6.** Net Lease. This is a net lease.

**7.** No Setoff. Lessee's obligation to pay all rent and other amounts under this Agreement is absolute and unconditional and is not subject to any abatement, counterclaim, defense, deferment, interruption, recoupment, reduction, or setoff for any reason whatsoever.

**8.** Commencement Date. The "Commencement Date" of this Agreement is Jun 10, 2028

**9.** Expiration Date. The "Expiration Date" of this Agreement is Jun 16, 2028

## 10. RENT AND CHARGES

**10.1** Rent.The term hereof with respect to any Unit shall commence on the Commencement Date and, unless sooner terminated hereunder, shall expire on the later of the Expiration Date or the date such Unit is returned to and accepted by Lessor in the condition required hereunder ("Term"). During the Term for any Unit, Lessee shall pay to Lessor the rental rates, fees, charges, deposits, and other amounts set forth in Exhibit C attached hereto and incorporated herein by reference. All rental amounts shall be payable in accordance with the provisions of Section 11 of this Agreement. Any additional rental charges, extensions, late fees, fuel charges, cleaning charges, damage charges, transportation charges, taxes, or other amounts due under this Agreement shall be deemed additional rent and shall be payable by Lessee upon demand by Lessor. Rental rates set forth in Exhibit C do not include applicable sales, use, excise, or similar taxes. Lessee shall be responsible for payment of all applicable federal, state, and local taxes associated with the rental of any Unit.

**10.2** Security Deposit. Lessee shall provide a refundable security deposit in the amount set forth in Exhibit C. The security deposit shall secure Lessee's performance of all obligations under this Agreement. Lessor may apply all or any portion of the security deposit toward unpaid rent, damages, loss, cleaning charges, fuel charges, transportation charges, late fees, collection costs, or any other amounts due under this Agreement. The security deposit shall not limit Lessee's liability for amounts exceeding the deposit. Following the return of all equipment and satisfaction of all obligations under this Agreement, Lessee must submit a written request for the return of any remaining security deposit. Within a reasonable time after receipt of such written request and completion of Lessor's inspection of the equipment, Lessor shall return any remaining balance of the security deposit to Lessee, less any deductions permitted under this Agreement.

### 10.3 Additional Charges and Fees.

(a) Fuel Surcharge. Lessee shall return each Unit with the same fuel level as when delivered. If additional fuel is required, Lessee shall reimburse Lessor at two (2) times the actual fuel cost incurred by Lessor. Fuel surcharge rates and calculations are further described in Schedule 2.

(b) Delivery and Pickup Fees. Delivery and pickup services are available at the request of Lessee and shall be billed in accordance with Schedule 2. Delivery and pickup charges may be assessed at rates up to Four Dollars ($4.00) per loaded mile, plus any applicable taxes, tolls, permits, or other transportation-related expenses incurred by Lessor.

(c) Cleaning Fees. Lessee shall return each Unit in substantially the same clean condition as when delivered. If cleaning is required, Lessor may assess interior and exterior cleaning charges at the rate of One Dollar ($1.00) per minute. Cleaning charges shall be billed in accordance with Schedule 2.

(d) Impound and Recovery Charges. If any Unit becomes subject to impound, seizure, storage, towing, recovery, or similar action during the rental period, Lessee shall be solely responsible for all impound fees, storage fees, administrative fees, release fees, towing fees, and any other charges associated with the recovery and release of the Unit. Impound fees shall be charged in accordance with applicable Utah law and shall be paid separately from rental charges.

(e) Recovery Services. If Lessor is required to recover, retrieve, transport, or otherwise secure a Unit due to impound, abandonment, improper use, accident, repossession, recovery, or any other circumstance attributable to Lessee, such recovery services shall be billed at Two Hundred Eighty Dollars ($280.00) per hour, portal-to-portal, with a one (1) hour minimum charge. Any portion of an hour shall be billed as a full hour. In addition, Lessee shall be responsible for any equipment charges, subcontractor charges, permits, towing charges, storage charges, mileage charges, administrative costs, and other expenses incurred by Lessor.

(f) Additional Rent. All fees, surcharges, charges, expenses, and amounts described in this Section 10.3 and Schedule 2 shall constitute additional rent under this Agreement and shall be immediately due and payable upon demand by Lessor.

**11.** PAYMENT MECHANICS.Lessee shall pay all rental charges, deposits, damage charges, taxes, fees, and other amounts due under this Agreement in full at the commencement of the rental period unless otherwise agreed in writing by Lessor. Security deposits shall be paid before any equipment is released to Lessee. Payment may be made by cash, credit card, debit card, or any other payment method approved by Lessor. As a condition of rental, Lessee shall complete and execute the Credit Card Authorization Form attached hereto as Schedule 1. Lessee authorizes Lessor to charge any unpaid rental fees, extensions, damages, cleaning charges, fuel charges, transportation charges, taxes, late fees, stipulated loss values, collection costs, attorney fees, and any other amounts due under this Agreement to the payment method identified in Schedule 1. Returned payments, chargebacks, revoked authorizations, or declined transactions shall constitute a default under this Agreement, and all associated collection costs, attorney fees, court costs, bank charges, and costs of collection shall be the responsibility of Lessee. Rental Invoices. Lessor may issue one or more Rental Invoices, Rental Orders, Equipment Checkout Forms, Reservations, Confirmations, or similar transaction documents in connection with any rental. Each such document shall be incorporated into and governed by this Agreement. In the event of any conflict between a Rental Invoice and this Agreement, the terms of this Agreement shall control unless expressly modified in writing and signed by both Parties.

**12.** Late Payments. If Lessee does not pay any amount payable to Lessor under this Agreement within two (2) days after the due date, Lessee shall pay to Lessor a late charge equal to the lower of (a) the maximum amount allowed by law and (b) 1.5% of the late payment amount for each day payment is overdue. Payment of any late charge does not excuse Lessee from any default under this Agreement.

**13.** EXCLUSION OF WARRANTIES. LESSOR MAKES NO WARRANTY WHATSOEVER, INCLUDING WITHOUT LIMITATION ANY (a) WARRANTY OF MERCHANTABILITY; (b) WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE;

(c) WARRANTY AGAINST INTERFERENCE; OR (d) WARRANTY AGAINST INFRINGEMENT OF ANY PATENT, COPYRIGHT, TRADEMARK, TRADE SECRET, OR OTHER PROPRIETARY RIGHTS OF A THIRD PARTY; WHETHER ARISING BY LAW, COURSE OF DEALING, COURSE OF PERFORMANCE, USAGE OF TRADE, OR OTHERWISE.

**14.** Lessee's Representations. Lessee represents and warrants for the benefit of Lessor that the statements in this Section 14 are true and correct as of the date hereof.

**14.1** Lessee is a _____ duly organized, validly existing, in good standing, and duly licensed and qualified to do business under applicable law.

**14.2** Lessee has full corporate power and authority to enter into this Agreement, carry out its obligations hereunder, and consummate the transactions contemplated hereby. This Agreement has been duly executed and delivered by Lessee, and constitutes a legal, valid, and binding obligation of Lessee enforceable against Lessee in accordance with its terms.

**14.3** The execution, delivery, and performance by Lessee of this Agreement will not require the consent of any party, result in any lien on any Unit, or conflict with the organizational documents of Lessee, any provision of applicable law, or any instrument by which Lessee is bound.

**14.4** There are no actions pending or threatened against or by Lessee challenging the transactions contemplated by this Agreement and no circumstances exist that may give rise to such an action.

**14.5** On or prior to the date of this Agreement, Lessee has provided Lessor with insurance certificates accurately evidencing that the insurance coverage required under Section 19 hereof is in effect and with insurance certificates accurately evidencing that the insurance coverage required as of the date of this Agreement under Section 19 hereof is in effect.

**14.6** If not publicly available, Lessee has delivered complete copies of Lessee's financial statements for its most recent fiscal year and any other financial information of Lessee reasonably requested by Lessor, fairly presenting the financial condition and operations of Lessee's business as of the dates such statements and information were prepared.

**15.** Lessee's Covenants. Lessee agrees that until all amounts payable under this Agreement have been paid in full and all other obligations hereunder have been performed in full, Lessee shall comply with the covenants in this Section 15.

### 15.1 Lessee shall comply with all applicable law.

**15.2** Lessee shall maintain in full force and effect all permits required to continue conducting its business and to lease and use each Unit in the manner contemplated under this Agreement.

**15.3** Lessee shall pay, and indemnify and hold Lessor harmless from, all assessments, license fees, and sales, use, property, excise, and other taxes and charges (other than gross or net income taxes) arising out of or in connection with this Agreement, the consummation of the transactions contemplated herein, or the shipment, possession, ownership, use, delivery, or operation of any Unit.

### 15.4 Lessee shall keep the Units free and clear of all liens.

**15.5** enter into any sublease of any Unit without Lessor's prior written consent, which consent may be withheld in Lessor's sole discretion. No permitted sublease shall relieve Lessee of its obligations under this Agreement.Lessee shall not

### 16. Lessee's Use of Equipment.

**16.1** No marking of any kind shall be placed on any Unit by Lessee except with the prior written consent of Lessor. Any such marking placed on a Unit by Lessee shall be removed at Lessee's expense on or before the expiration or earlier termination of the Term for such Unit. Lessee shall, at Lessee's expense and to Lessor's satisfaction, place and maintain on each Unit any identifying marks required by Lessor.

**16.2** remain at all times personal property and not a fixture under applicable law, even if the Unit, or any part thereof, may be or become affixed or attached to real property or any improvements.The Parties intend that each Unit shall

**16.3** Lessee shall operate each Unit exclusively in connection with its business. Lessee shall not operate or permit the operation of any Unit in an unsafe or improper manner.

**16.4** Lessee, at its own expense, shall maintain all records, logs, and other materials related to the Units ("Records") using practices and with a degree of care, comprehensiveness, and accuracy consistent with industry practice, but in no event less than reasonable practices and a reasonable degree of care, comprehensiveness, and accuracy, and as required by applicable law, and promptly furnish to Lessor such Records as may be requested by Lessor for any purpose.

**16.5** right of access to Lessee's premises to inspect the Units and Lessee's Records on reasonable notice and during regular business hours. On Lessor's request, Lessee shall cooperate with and assist Lessor in obtaining access to premises other than Lessee's so that Lessor's employees and agents may inspect the Units.Lessor's employees and agents shall have the

**16.6** INSPECTION, CONDITION, AND ACCEPTANCE. Each serialized Unit and the applicable current equipment-specific Check-Out / Check-In Inspection Form shall be identified in, referenced by, or otherwise associated with the applicable Rental Schedule, invoice, Transaction Schedule, or other rental documentation. Such operational inspection forms may record the invoice number, customer or Lessee, check-out and check-in dates and times, hour meter readings, hours used, fuel level, inspecting employee or representative, equipment-specific condition ratings, photographs, existing or newly identified damage, missing equipment, accessories or attachments, additional return charges, damage determinations, customer acknowledgments, and representative certifications. Before operating or using a Unit, Lessee shall inspect the Unit or review the documented check-out condition and shall promptly notify Lessor of any visible damage, missing component or attachment, unsafe condition, or material discrepancy. Lessee's acceptance, signature, or acknowledgment of a condition record constitutes evidence of the condition reasonably observable

at the time stated but does not waive a claim concerning a latent or hidden defect that could not reasonably have been discovered through ordinary inspection, nor does it waive any duty or remedy that cannot lawfully be waived. Lessor may use equipment- specific Check-Out / Check-In Inspection Forms for different Units, and those forms are incorporated as operational records when identified with the applicable rental transaction. Such forms supplement, but do not replace or amend, this Agreement unless an amendment is expressly agreed to in writing. In the event of a conflict, this Agreement controls unless a later written amendment expressly states otherwise. Lessee's general condition and return acknowledgment is set forth in Exhibit D.

### 17. Maintenance and Mandatory Modifications.

**17.1** Lessee, at its sole expense and consistent with standard industry practice for similar equipment, Lessee's maintenance practices for its other similar equipment, and applicable insurance requirements, shall maintain, service, and repair each Unit and keep each Unit in compliance with any vendor's or manufacturer's specifications and applicable law, in serviceable and operable condition, free of broken, damaged, or missing parts, suitable for the commercial use originally intended[, ordinary wear and tear excepted]. All maintenance, service, and repair of any Unit and any part thereof shall be done to standards and with parts of like kind and at least equal quality to items being maintained, serviced, or repaired.

**17.2** If during the Term hereof any part of any Unit is lost, stolen, damaged beyond repair, or otherwise permanently rendered unfit for use, Lessee, at its sole expense, shall promptly replace or cause to be replaced such part with one or more replacement parts. Lessee shall cause such Unit after the replacement to be in as good an operating condition as, and have a value, remaining useful life, and utility at least equal to the value, remaining useful life, and utility of the Unit before the replacement (assuming such Unit to have been in the condition required by the terms of this Agreement).

**17.3** Lessee, at its sole expense, shall make any alteration or modification to any Unit, including without limitation the replacement or addition of any component, that is required or supplied by the Lessor or the manufacturer or necessary to comply with applicable law. Lessee shall notify Lessor within ten (10) days of learning that an alteration or modification is required by applicable law.

**17.4** parts to be free and clear of any lien.If Lessee incorporates or installs any part in or attaches any part to a Unit, including without limitation any replacement or addition under Section 17.3, then immediately on any part becoming incorporated or installed in or attached to the Unit, without further act or any cost to Lessor, such part is deemed part of the Unit to the same extent as though originally incorporated or installed in or attached to the Unit, title to such part vests in Lessor, and such part becomes subject to this Agreement. Lessee shall cause all

**17.5** BREAKDOWN, SERVICE, MALFUNCTION, AND COMPANY RESPONSE. Lessee shall immediately discontinue use of any Unit upon the occurrence or discovery of any warning indicator, defect, breakdown, material malfunction, abnormal operation, damage, or condition that is or reasonably appears to be unsafe or that could cause further damage to the Unit, other property, or any person. Lessee shall promptly notify Lessor at 801-903-9380 and shall not resume operation unless and until authorized by Lessor. Lessor shall determine, in its reasonable discretion, whether to inspect, diagnose, repair, replace, recover, or authorize limited emergency measures concerning the affected Unit. Lessee shall not perform or authorize repairs, alterations, towing, recovery, disassembly, or replacement of parts without Lessor's prior authorization, except for reasonable measures necessary to prevent imminent bodily injury or material additional property damage. Lessee shall follow all stop-use instructions issued by Lessor. Any rental credit, replacement equipment, refund, downtime treatment, or other remedy arising from a breakdown or service interruption shall be determined under this Agreement and any applicable written Rental Schedule or service policy issued by Lessor. Lessor shall not be responsible for delay or inability to perform caused by circumstances beyond its reasonable control; provided, however, that nothing in this Agreement waives any duty or remedy that cannot lawfully be waived.

### 18. Loss.

**18.1** From the Commencement Date through the expiration or earlier termination of the Term hereunder as to any Unit, Lessee shall bear all risk of loss, damage, destruction, theft, taking, confiscation, or requisition, partial or complete, of or to such Unit or its use, however caused or occasioned ("Loss"). Lessee shall notify Lessor in writing within five (5) days of learning of any such Loss.

### 18.2 The "Stipulated Loss Values" for the Units are as set forth in the attached Exhibit B.

**18.3** If Lessor determines in its sole discretion that a Loss has materially impaired the Unit affected or its use, Lessee shall pay, on Lessor's demand ("Loss Payment Date"), all rent and other amounts due prior to the Loss Payment Date with respect to such Unit plus the Stipulated Loss Value of the Unit determined in accordance with Exhibit B hereto (collectively, "Loss Payment"). This Agreement shall terminate with respect to any materially impaired Unit on receipt by Lessor of the corresponding Loss Payment. Upon such receipt and termination, Lessor shall deliver to Lessee a duly executed quitclaim bill of sale conveying title to such Unit to Lessee.

**18.4** If Lessor determines in its sole discretion that a Loss has not materially impaired the Unit affected or its use, this Agreement shall continue with respect to such Unit as though no Loss had occurred; and Lessee shall at its sole expense promptly repair or cause to be repaired such Unit to the condition in which such Unit is required to be maintained hereunder, to the satisfaction of Lessor. For the avoidance of doubt, there shall be no abatement of rent or rent credit for any period in which a Unit is in a shop or otherwise out of operation in connection with any maintenance, repairs, or mandatory modifications under this Section 18 or Section 17 hereof.

**18.5** ACCIDENTS, DAMAGE, THEFT, CITATIONS, IMPOUND, AND CLAIMS. Upon any accident, collision, injury, property damage, fire, theft, attempted theft, vandalism, impound, citation, claim, material malfunction, or other event involving or affecting a Unit, Lessee shall immediately take reasonable steps to protect persons and property, contact emergency services or law enforcement when appropriate, discontinue use when continued operation could be unsafe or cause additional damage, secure the Unit and surrounding property, and notify Lessor at 801-903-9380. Theft, serious bodily injury, fire, impound, or significant property damage shall be reported to Lessor by telephone immediately or as soon as reasonably practicable under the circumstances. All other events covered by this Section shall be reported promptly and, in all events, no later than twenty-four (24) hours after the event or Lessee's discovery of it. Lessee shall obtain and preserve, to the extent reasonably available, the names and contact information of involved persons and witnesses, insurance information, law-enforcement or agency report numbers, photographs or video, citation or

impound documentation, and other relevant non-privileged evidence. Lessee shall not admit liability, assume obligations, settle a claim, or make representations on behalf of Lessor. Lessee shall reasonably cooperate with Lessor, its insurers, law enforcement, recovery personnel, and claims professionals in the investigation, preservation, recovery, adjustment, defense, or resolution of any incident or claim. Lessee shall not repair, dispose of, transfer, conceal, abandon, or materially alter a Unit or evidence relating to an incident without Lessor's prior direction or authorization, except for reasonable measures necessary to prevent imminent bodily injury or material additional property damage.

## 19. INSURANCE REQUIREMENTS AND OPTIONAL RENTAL DAMAGE WAIVER.

For purposes of this Section 19, “Lessor” means Urban Cowboy Rentals LLC, and “Lessee” means the individual or legal entity identified as the renter under this Agreement. “Equipment” means each Unit and any equipment, machinery, attachment, accessory, trailer, component, and related property identified in the applicable Rental Schedule, Equipment Schedule, invoice, or other rental documentation incorporated into this Agreement.

Lessee’s obligations under this Section shall commence upon the earlier of delivery of the Equipment to Lessee or Lessee’s taking possession, custody, or control of the Equipment and shall continue until the Equipment has been physically returned to and accepted by Lessor.

### 19.1 CLASSIFICATION OF LESSEE.

For purposes of determining the applicable insurance requirements, Lessee shall be classified as either:

(a) Commercial/Business Lessee. Any corporation, limited liability company, partnership, sole proprietorship, contractor, subcontractor, governmental entity, association, or individual renting or using Equipment primarily in connection with a trade, business, profession, occupation, construction activity, income-producing activity, or other commercial purpose; or

(b) Personal/Homeowner Lessee. An individual renting and using Equipment primarily for personal, household, residential, or other non- commercial purposes.

Lessor may reasonably determine the applicable classification based upon the identity of Lessee and the disclosed intended use of the Equipment.

### 19.2 COMMERCIAL/BUSINESS LESSEE – LIABILITY INSURANCE.

Every Commercial/Business Lessee shall, at its sole cost and expense, procure and maintain throughout the Rental Term Commercial General Liability (“CGL”) Insurance with limits of not less than $1,000,000 per occurrence for bodily injury, personal injury, and property damage arising out of or relating to Lessee’s operations, possession, transportation, maintenance, or use of the Equipment.

To the extent available under the applicable policy and endorsements, such insurance shall:

(a) name Urban Cowboy Rentals LLC as an Additional Insured with respect to liability arising out of Lessee’s possession, transportation, operation, or use of the Equipment;

(b) apply on a primary and non-contributory basis with respect to insurance maintained by Lessor;

(c) include a waiver of subrogation in favor of Lessor to the extent commercially available and permitted by law; and

(d) provide such notice of cancellation or material reduction in coverage as is available under the applicable policy or endorsement.

The insurance requirements contained in this Section establish minimum contractual requirements only and shall not be construed as limiting Lessee’s liability or obligations under this Agreement.

### 19.3 COMMERCIAL/BUSINESS LESSEE – PHYSICAL DAMAGE COVERAGE.

Unless Lessee elects and Lessor accepts the Rental Damage Waiver described in Section 19.7, Commercial/Business Lessee shall maintain insurance covering physical loss of or damage to the Equipment, including theft, vandalism, fire, collision, overturn, and other direct physical loss, in an amount not less than the greater of the Stipulated Loss Value or full replacement value of the Equipment. Where available and applicable, Urban Cowboy Rentals LLC shall be named as Loss Payee with respect to the Equipment. Lessee shall be solely responsible for all deductibles, self-insured retentions, exclusions, coverage limitations, denied claims, and uninsured losses.

### 19.4 PERSONAL/HOMEOWNER LESSEE.

A Personal/Homeowner Lessee shall remain financially responsible for loss of or damage to the Equipment during the Rental Term except to the extent that (a) such loss or damage is actually paid by applicable insurance; or (b) Lessee has affirmatively elected and paid for Lessor’s Rental Damage Waiver and the particular loss is subject to the waiver pursuant to Section 19.7. Lessor does not represent or warrant that any homeowners, renters, automobile, personal liability, umbrella, credit-card, or other insurance maintained by Lessee provides coverage for rented Equipment or liability arising from its transportation or operation. Lessee is solely responsible for determining the existence and extent of any applicable personal insurance coverage.

### 19.5 WORKERS' COMPENSATION AND EMPLOYER'S LIABILITY.

Any Commercial/Business Lessee required by applicable law to maintain workers' compensation insurance shall maintain such coverage in accordance with all applicable statutory requirements. Where applicable, Lessee shall also maintain Employer's Liability Insurance with limits of not less than $1,000,000 per accident for bodily injury by accident, together with such other limits as may be required by applicable law.

### 19.6 AUTOMOBILE AND TOWING LIABILITY.

If Lessee transports or tows Equipment using Lessee's vehicle, trailer, employee, agent, contractor, or other means of transportation, Lessee shall be solely responsible for maintaining all automobile liability insurance required by applicable law. Lessee shall be solely responsible for verifying that the tow vehicle, trailer, hitch, coupler, safety chains, braking system, tires, load securement, Gross Vehicle Weight Rating ("GVWR"), Gross Combined Weight Rating ("GCWR"), and operator qualifications are lawful and adequate for the Equipment being transported. Acceptance or inspection of any tow vehicle or transportation arrangement by Lessor shall not constitute certification by Lessor that such vehicle or arrangement is safe, lawful, or adequate.

### 19.7 OPTIONAL RENTAL DAMAGE WAIVER ("RDW").

Subject to Lessor's approval and the terms of this Agreement, both Commercial/Business Lessees and Personal/Homeowner Lessees may elect to purchase an optional Rental Damage Waiver ("RDW") for an additional charge.

THE RENTAL DAMAGE WAIVER IS NOT LIABILITY INSURANCE AND IS NOT INTENDED TO CONSTITUTE AN INSURANCE POLICY.

The RDW constitutes a contractual agreement by Lessor to waive or limit a portion of Lessee's otherwise applicable financial responsibility to Lessor for certain qualifying accidental direct physical loss of or damage to covered Equipment occurring during the Rental Term. The RDW applies only to Equipment specifically identified in the applicable Rental Agreement, Rental Schedule, invoice, or other written documentation as being subject to the RDW and only after payment of the applicable RDW charge. The RDW is optional and shall become effective only upon Lessee's affirmative written or electronic election and Lessor's acceptance.

**19.8** RDW DEDUCTIBLE. Each covered loss shall be subject to the applicable Damage Waiver Deductible stated in Exhibit B for the affected Unit, or such other deductible or retained responsibility amount expressly stated in the applicable Rental Schedule, invoice, or RDW election. Lessee shall remain responsible for payment of the applicable Damage Waiver Deductible notwithstanding Lessee's purchase of the RDW. Unless expressly stated otherwise in writing, a separate deductible shall apply to each occurrence and each item of Equipment damaged or lost. Lessee's eligibility for any waiver or limitation of responsibility under the RDW is also subject to Lessee's compliance with the incident reporting, evidence-preservation, cooperation, stop-use, and Company-direction requirements of Sections 17.5 and 18.5, but a failure to comply shall affect RDW protection only to the extent expressly provided by the applicable RDW terms, conditions, or exclusions and permitted by law.

Each covered loss shall be subject to the deductible or retained responsibility amount specified for the applicable Equipment in Exhibit B, as may be supplemented by the applicable Rental Schedule, invoice, or RDW election. Lessee shall remain responsible for payment of the applicable deductible notwithstanding Lessee's purchase of the RDW. Unless expressly stated otherwise in writing, a separate deductible shall apply to each occurrence and each item of Equipment damaged or lost.

### 19.9 RDW DOES NOT PROVIDE GENERAL LIABILITY COVERAGE.

THE RENTAL DAMAGE WAIVER DOES NOT PROVIDE COMMERCIAL GENERAL LIABILITY, PERSONAL LIABILITY, AUTOMOBILE LIABILITY, PROPERTY DAMAGE LIABILITY, BODILY INJURY LIABILITY, WORKERS' COMPENSATION, EMPLOYER'S LIABILITY, OR ANY OTHER THIRD-PARTY LIABILITY COVERAGE.

Without limiting the foregoing, the RDW does not waive, assume, insure, defend, indemnify, or pay Lessee's liability arising from:

(a) bodily injury, sickness, disease, or death of any person;

(b) damage to real or personal property belonging to any person or entity other than Lessor;

(c) damage to buildings, structures, vehicles, utilities, landscaping, pavement, roadways, underground facilities, or other third-party property;

(d) automobile, trailer, transportation, or towing liability;

(e) environmental contamination or remediation;

(f ) workers' compensation or employer liability; or

(g) fines, penalties, citations, assessments, or governmental charges.

Lessee remains responsible for such liability to the extent imposed upon Lessee by applicable law or this Agreement.

PURCHASE OF THE RDW DOES NOT SATISFY THE COMMERCIAL GENERAL LIABILITY INSURANCE REQUIREMENTS APPLICABLE TO A COMMERCIAL/BUSINESS LESSEE UNDER SECTION 19.2.

### 19.10 EXCLUSIONS FROM RENTAL DAMAGE WAIVER.

Notwithstanding Lessee's purchase of the RDW, Lessor shall have no obligation to waive Lessee's financial responsibility for loss or damage arising directly or indirectly from:

(a) intentional acts, intentional damage, abuse, misuse, gross negligence, reckless conduct, or willful misconduct;

(b) operation by any person who is unauthorized, unqualified, underage, impaired, intoxicated, or otherwise prohibited from operating the Equipment;

(c) use of the Equipment for an unlawful purpose or in violation of this Agreement;

(d) operation contrary to manufacturer instructions, safety warnings, rated capacities, or operating limitations;

(e) overloading, overworking, or using the Equipment for a purpose for which it was not designed;

(f ) improper loading, unloading, towing, transportation, tie-down, or securement;

(g) use of incorrect fuel, DEF, hydraulic fluid, oil, lubricant, coolant, or other fluid;

(h) failure to maintain required fluid levels or ordinary operating maintenance required of Lessee;

(i) continued operation after a warning light, alarm, overheating condition, low-fluid condition, visible leak, unusual noise, loss of hydraulic pressure, mechanical malfunction, or other condition reasonably requiring shutdown;

(j) tire or track damage resulting from abuse, excessive spinning, cutting, puncture, improper operation, or operation on unsuitable surfaces, except to the extent resulting directly from an otherwise covered accidental occurrence;

(k) theft, attempted theft, or vandalism where Lessee failed to exercise reasonable care to secure the Equipment;

(l) leaving ignition keys, access devices, or security credentials in or with unattended Equipment;

(m) abandonment, conversion, concealment, unauthorized sale, unauthorized sublease, unauthorized transfer, or failure to return the Equipment;

(n) loss occurring outside any geographical area authorized by Lessor;

(o) loss occurring after expiration or termination of the authorized Rental Term while Lessee continues to possess the Equipment without Lessor's written authorization;

(p) failure to comply with applicable excavation, utility-location, permitting, or safety requirements; or

(q) any additional exclusion conspicuously identified in the Rental Agreement, Rental Schedule, or RDW election applicable to the Equipment.

If an exclusion applies, Lessee shall remain liable for the full amount otherwise recoverable under this Agreement, without reduction attributable to the RDW.

### 19.11 LESSEE'S CONTINUING RESPONSIBILITY.

Except to the extent expressly waived by Lessor under an applicable RDW or actually satisfied by insurance proceeds received by Lessor, Lessee assumes responsibility for physical loss of or damage to the Equipment occurring while the Equipment is in Lessee's possession, custody, or control, subject to applicable law and the other terms of this Agreement. Lessee's obligations are not discharged because (a) Lessee maintained insurance; (b) Lessor accepted a certificate of insurance; (c) an insurer denies or limits coverage; (d) applicable insurance contains a deductible or self-insured retention; or (e) insurance proceeds are insufficient to satisfy Lessee's obligations.

### 19.12 PROOF OF INSURANCE.

When insurance is required under this Agreement, Lessee shall, upon Lessor's request and before delivery or release of the Equipment, furnish certificates of insurance and such endorsements or other evidence of coverage as Lessor may reasonably require. Lessor's review, acceptance, or failure to request evidence of insurance shall not (a) waive any requirement of this Agreement; (b) constitute a representation that Lessee's insurance is sufficient; (c) impose upon Lessor any obligation to verify coverage; or (d) reduce Lessee's obligations under this Agreement. Lessor may refuse to release Equipment when Lessee fails to provide required evidence of insurance.

### 19.13 INSURANCE PROCEEDS.

To the extent permitted by applicable law and the applicable insurance policy, insurance proceeds attributable to physical loss of or damage to Lessor's Equipment shall be payable to Urban Cowboy Rentals LLC as owner and/or Loss Payee. Lessor may apply such proceeds to the reasonable cost of repair or replacement of the affected Equipment and other amounts recoverable under this Agreement arising from the same loss. Lessee shall receive credit for insurance proceeds actually received and retained by Lessor for the same compensable loss. Nothing in this Agreement authorizes Lessor to obtain a duplicate recovery for the same element of loss.

### 19.14 NO REPRESENTATION OR WARRANTY REGARDING INSURANCE.

Lessor does not warrant or represent that any insurance maintained by Lessee will provide coverage for the Equipment, Lessee, any operator, or any particular occurrence. Lessee is solely responsible for consulting with Lessee's insurer, insurance producer, legal counsel, or other professional advisor concerning Lessee's insurance requirements and coverage. Lessor's employees and representatives are not authorized by this Agreement to modify, interpret, or make representations concerning the terms or coverage of any insurance policy maintained by Lessee.

### 19.15 RDW ELECTION AND ACKNOWLEDGMENT.

Lessee shall affirmatively elect or decline the Rental Damage Waiver in the applicable Rental Agreement, Rental Schedule, invoice, or electronic rental transaction.

ACCEPTANCE OF RDW: Lessee acknowledges that Lessee has reviewed the applicable RDW charge, deductible, limitations, and exclusions and voluntarily elects the Rental Damage Waiver.

DECLINATION OF RDW: If Lessee declines the Rental Damage Waiver, Lessee acknowledges that Lessee remains financially responsible for loss of or damage to the Equipment in accordance with this Agreement, subject to applicable law and any insurance available to satisfy such obligation.

Lessee acknowledges that the Rental Damage Waiver does not provide third-party liability insurance and that purchasing the RDW does not relieve a Commercial/Business Lessee of the liability insurance requirements contained in Section 19.2.

**19.16** RENTAL RENEWAL OR EXTENSION OPTION. Lessee may request an extension or renewal of the Rental Term before the scheduled return date and time. No extension or renewal shall be effective unless expressly approved in writing or electronically by Lessor. Lessor may approve or deny any request in its discretion and may condition approval upon payment of all amounts then due, continued satisfaction of insurance or Rental Damage Waiver requirements, equipment availability, updated rental rates, an additional security deposit, inspection, or execution of additional rental documentation. Unless Lessor expressly agrees otherwise in writing, any approved extension or renewal shall be charged at Lessor's then-current applicable rental rate and shall remain subject to all terms, conditions, duties, risk-of-loss provisions, Damage Waiver Deductibles, and other obligations of this Agreement. Lessee's continued possession or use of Equipment beyond the authorized Rental Term does not constitute an approved renewal or extension and may result in additional rent, late-return charges, recovery costs, and other remedies permitted by this Agreement or applicable law.

**19.17** OPTION TO PURCHASE. A Lessee may request an option to purchase rented Equipment, but no purchase option exists unless Lessor expressly grants the option in a written Rental Schedule, purchase-option addendum, invoice, or other written or electronic document identifying the applicable Unit and the purchase terms. Any approved purchase option shall state the purchase price or the method for determining the purchase price, the option expiration date, the amount, if any, of rental payments or other charges to be credited toward the purchase price, applicable taxes and fees, and any other conditions required by Lessor. Unless expressly stated otherwise in the written purchase option, rental payments, Rental Damage Waiver charges, delivery or pickup charges, deposits, late charges, repair charges, Damage Waiver Deductibles, taxes, and other fees shall not be credited toward the purchase price. Exercise of a purchase option shall not transfer title until Lessor has received all amounts due under the purchase option and this Agreement in collected funds and has delivered written evidence of transfer. Until title transfers, the Equipment remains the sole property of Lessor and all provisions of this Agreement remain in effect. Equipment purchased pursuant to an option shall be sold in its then-existing condition, subject to any non-waivable rights under applicable law and any express written warranty, if any, provided by Lessor at the time of sale.

### 20. Application of Insurance Proceeds and Condemnation Payments.

**20.1** amounts are then due and outstanding, remit such proceeds to Lessee; or, if received pursuant to a Loss that has not materially impaired a Unit under Section 18.4, remit the proceeds to Lessee. If Lessee is in default under this Agreement, or an Event of Default (as hereinafter defined) has occurred and is continuing, Lessor may hold any such proceeds as security for the obligations of Lessee under this Agreement and apply such amounts in its sole discretion against Lessee's obligations hereunder.If Lessor receives any proceeds as loss payee of the Property Insurance, or under any condemnation proceeding related to the Units, it shall, if received pursuant to a Loss that has materially impaired a Unit under Section 18.3, credit such proceeds against Lessee's obligation to make Loss Payments to Lessor under Section 18.3 or if no such

**20.2** If Lessee receives any proceeds under the Property Insurance, or under any condemnation proceeding related to the Units, unless received with respect to a Loss that has not materially impaired a Unit as set forth in Section 18.4, Lessee shall promptly forward such amounts to Lessor to be applied by Lessor under Section 20.1. If Lessee is in default under this Agreement, or an Event of Default (as hereinafter defined) has occurred and is continuing, and Lessee receives any proceeds under the Property Insurance or under any condemnation proceeding related to the Units (regardless of whether a Unit is materially impaired) or the Liability Insurance, it shall forward such amounts to Lessor as security for the obligations of Lessee under this Agreement to be applied by Lessor in its sole discretion against Lessee's obligations hereunder.

## 21. Default.

**21.1** i) becomes insolvent, (ii) is generally unable to pay, or fails to pay, its debts as they become due, (iii) files, or has filed against it, a petition for voluntary or involuntary bankruptcy, (iv) makes or seeks to make a general assignment for the benefit of its creditors, or (v) applies for, or consents to, the appointment of a trustee, receiver, or custodian for a substantial part of its property or business; (d) Lessee sells, transfers, or disposes of all or substantially all of its assets or the property of its business, or merges or consolidates with any other entity; or (e) any representation contained in Section 14 is untrue as and when made.Each of the following events is an "Event of Default" under this Agreement:

(a) Lessee fails to pay any rent or any other amount under this Agreement when due; (b) Lessee defaults in the observance or performance of any other term, covenant, or condition of this Agreement, on Lessee's part to be observed or performed, and Lessee fails to remedy such default within five (5) days after notice by Lessor to Lessee of such default; (c) Lessee's interest or any portion thereof in this Agreement devolves on or passes to any other party, whether by operation of law or otherwise; (d) Lessee (

**21.2** If an Event of Default occurs and is continuing, Lessor may, in its sole discretion, exercise one or more of the following remedies: (a) declare this Agreement in default; (b) terminate this Agreement in whole or in part; (c) take possession of, or render unusable, any Unit wherever it may be located, without demand or notice, without any court order or other process of law, and without liability to Lessee for any damages occasioned by such action; (d) require Lessee to deliver any Unit in the condition required under this Agreement to a location designated by Lessor and, for each day that Lessee fails to return any Unit, Lessor may demand an amount equal to the rent for such Unit, prorated on the basis of a thirty-day month, in effect immediately prior to such Event of Default; (e) proceed by court action to enforce performance by Lessee of this Agreement and/or to recover all damages and expenses incurred by Lessor by reason of any Event of Default; (f) sell any or all of the Units at public or private sale, with or without notice to Lessee or advertisement, or otherwise dispose of, hold, use, operate, lease to others, or keep idle such Units, and without any duty to account to Lessee for such action or inaction or for any proceeds with respect thereto, and apply the net proceeds thereof (after deducting all expenses, including legal fees and costs, incurred in connection therewith) to the amounts owed to Lessor under this Agreement, provided, however, that Lessee shall remain liable to Lessor for any deficiency that remains after any sale or lease of such Units; and

(g) exercise any other right or remedy available to Lessor at law, in equity, by statute, in any other agreement between the Parties, or otherwise.

## 22. Indemnity.

**22.1** successors and assigns (collectively, "Indemnitees") against any and all losses, injury, death, damages, liabilities, claims, deficiencies, actions, judgments, interest, awards, penalties, fines, costs, or expenses of whatsoever kind and nature, including attorneys' fees and the cost of enforcing any right to indemnification under this Agreement and the cost of pursuing any insurance providers incurred by Indemnitees relating to, arising out of, or in connection with the transactions contemplated by this Agreement, including without limitation: including without limitation:Lessee shall indemnify, defend, and hold harmless Lessor, its successors and assigns, and its affiliates and their successors and assigns and the respective directors, officers, managers, members, employees, consultants, financial advisors, counsel, accountants, and other agents of Lessor, its successors and assigns, Lessor's affiliates, and their

(a) the selection, design, manufacture, delivery, purchase, acceptance, or rejection of any Unit or the ownership of any Unit;

(b) the lease, possession, maintenance, use, condition, repair, return, disposition, operation, storage, or transportation of any Unit, any parts, or any modifications thereto (including, without limitation, latent and other defects, whether or not discoverable by Lessor or Lessee)[, including without limitation any related pollution, contamination, environmental impairment, or similar condition];

(c) any inaccuracy in or breach of any of the representations of Lessee contained in this Agreement;

(d) any breach or non-fulfillment of any covenant, agreement, or obligation to be performed by Lessee pursuant to this Agreement; and

(e) any assertion of the infringement of patent, trade secret, trademark, copyright, or other intellectual property rights of third parties.

**23.** Lessor's Performance of Lessee's Obligations. If Lessee is in default or an Event of Default has occurred and is continuing, Lessor may, in its sole discretion, make any payment or perform any obligation on behalf of Lessee or take any action that Lessor in Lessor's sole discretion deems necessary to maintain and preserve any or all Units and Lessor's interests therein. Lessor's payment, performance of such obligation, or taking of such action shall not be a waiver by Lessor of any default or Event of Default or a release of Lessee by Lessor. Lessee shall pay immediately on demand to Lessor all sums so paid by Lessor and any expenses (including legal fees and costs) incurred by Lessor in connection with Lessor's payment, performance of such obligation, or taking of such action.

## 24. Return of Units.

**24.1** Lessee shall, at its sole expense and risk, no later than the Expiration Date or the earlier termination of the Term for any Unit (and except as set forth in Section 18.3), return such Unit to a location that shall be designated by Lessor in its sole discretion.

**24.2** tear excepted, including without limitation the removal of any marks that Lessee is permitted to apply to the Unit under Section 16.1, complete with all parts, and in compliance with applicable law. The condition of all parts on the return of any Unit shall be at least as good as when the Unit delivered to Lessee. Any repairs to such parts necessary on return to restore them to a condition as good as when such Unit delivered, and any replacement of such parts required on return by their unfitness for use or damage beyond repair, shall be at Lessee's sole expense. Any repairs to any Unit required on return because of damage to such Unit shall be at Lessee's sole expense.Lessee shall cause any Unit returned under this Agreement to be in at least as good condition as when delivered to Lessee, ordinary wear and

**24.2A** Security Deposit Application. Lessor may deduct from any security deposit amounts necessary to repair damage, replace missing items, clean equipment, refuel equipment, satisfy unpaid rental charges, satisfy any Loss Payment, or satisfy any other amounts due under this Agreement.

**24.3** Upon the return of any Unit under this Agreement, Lessee shall deliver or cause to be delivered to Lessor all records relating to the operation and maintenance of the Unit, including all maintenance records, logs, certificates, and data in Lessee’s possession or required to be maintained by applicable law.

**24.4** If by the Expiration Date or the earlier termination of this Agreement for a Unit, Lessee does not return such Unit to Lessor in the condition required by and otherwise in accordance with the terms and conditions of this Agreement, Lessee shall continue to comply with all the terms and conditions of this Agreement with respect to such Unit, including without limitation the obligation to pay 125% of the prorated daily rent for each day from the Expiration Date or the earlier termination of this Agreement for such Unit until the date on which Lessee returns such Unit to Lessor in the manner required under this Agreement ("Holdover Rent"). Nothing contained in this Section 24.4, including Lessee's payment of Holdover Rent, shall (a) constitute a waiver of Lessee's failure to perform any obligation under this Agreement; or (b) give Lessee the right to retain possession of any Unit after the Expiration Date or the earlier termination of this Agreement for such Unit.

## 25. Miscellaneous.

**25.1** Subject to any limitations and other provisions contained in this Agreement, the representations of Lessee contained in Section 14 survive indefinitely. All covenants and agreements of Lessee contained herein, including without limitation Lessee's obligations under Section 22, survive indefinitely or for the period explicitly specified therein.

**25.2** Notices. Any formal notice required or permitted under this Agreement shall be in writing and delivered personally, by nationally recognized overnight delivery service, by United States mail with appropriate postage, or by electronic mail to the applicable contact information stated in this Agreement, the Rental Schedule, or subsequently designated by a Party through an authorized written communication. Unless applicable law requires otherwise, notice shall be deemed given: (a) upon personal delivery; (b) on the documented delivery date when sent by nationally recognized overnight delivery service; (c) three (3) business days after deposit in the United States mail when properly addressed and postage prepaid; or (d) when transmitted by electronic mail without notice of failed delivery; provided that notices concerning default, termination, repossession, indemnification claims, or other material legal rights should also be sent by personal delivery, overnight delivery, or United States mail when reasonably practicable. Routine operational communications by telephone call, text message, messaging service, or similar informal means may be used for scheduling, delivery, pickup, equipment condition, breakdowns, service, incident reporting, or other day- to-day rental matters. Such operational communications shall not amend, modify, waive, or supersede this Agreement unless the communication expressly states that it constitutes an amendment or waiver and is accepted in writing or electronically by an authorized representative of each Party. Notices to Lessor shall be directed to Urban Cowboy Rentals LLC, 1032 E 1700 S, Salt Lake City, Utah 84105; email: urbancowboyrentals@gmail.com; telephone: 801-903-9380. Notices to Lessee shall be directed to the mailing address, email address, and/or other contact information provided by Lessee in the applicable Rental Schedule, invoice, rental transaction, or other written rental documentation. Each Party is responsible for providing written notice of any change to its designated notice information.

### 25.3 The headings in this Agreement are for reference only and shall not affect the interpretation of this Agreement.

**25.4** If any term or provision of this Agreement is invalid, illegal, or unenforceable in any jurisdiction, such invalidity, illegality, or unenforceability does not affect any other term or provision of this Agreement or invalidate or render unenforceable such term or provision in any other jurisdiction.

**25.5** This Agreement, together with all related exhibits and schedules, constitutes the sole and entire agreement of the Parties hereto with respect to the subject matter contained herein, and supersedes all prior and contemporaneous understandings, agreements, representations, and warranties, both written and oral, with respect to such subject matter.

**25.6** No amendment to or rescission, termination, or discharge of this Agreement is effective unless it is in writing, identified as an amendment to or rescission, termination, or discharge of this Agreement and signed by each Party to this Agreement.

**25.7** No waiver under this Agreement is effective unless it is in writing, identified as a waiver under this Agreement and signed by the Party waiving its right. Any waiver authorized on one occasion is effective only in that instance and only for the purpose stated and does not operate as a waiver on any future occasion. Neither any failure or delay in exercising any right, remedy, power, or privilege, or in enforcing any condition under this Agreement, nor any act, omission, or course of dealing between the Parties constitutes a waiver or estoppel with respect to any right, remedy, power, privilege, or condition arising from this Agreement.

**25.8** All rights and remedies of Lessor provided in this Agreement are cumulative and not exclusive, and the exercise by Lessor of any right or remedy does not preclude the exercise by Lessor of any other rights or remedies that may now or subsequently be available to Lessor at law, in equity, by statute, in any other agreement between the Parties, or otherwise.

**25.9** Lessee acknowledges that a breach or threatened breach by Lessee of any of its obligations under this Agreement would give rise to irreparable harm to Lessor for which monetary damages would not be an adequate remedy and hereby agrees that in the event of a breach or a threatened breach by Lessee of any such obligations, Lessor will, in addition to any and all other rights and remedies that may be available to Lessor in respect of such breach, be entitled to seek equitable relief, including a temporary restraining order, an injunction, specific performance, and any other relief that may be available from a court of competent jurisdiction (without any requirement to post bond).

**25.10** this Section 25.10 is null and void. No assignment or delegation relieves Lessee of any of its obligations under this Agreement.Lessee may not assign any of its rights or delegate any of its obligations under this Agreement without the prior written consent of Lessor. Any purported assignment or delegation in violation of

**25.11** inures to the benefit of the Parties hereto and their respective successors and permitted assigns.This Agreement is binding on and

**25.12** Subject to the final sentence of this Section 25.12, this Agreement benefits solely the Parties and their respective successors and permitted assigns and nothing in this Agreement, express or implied, confers on any other party any legal or equitable right, benefit, or remedy of any nature whatsoever under or by reason hereof. The Parties hereby designate the Indemnitees other than Lessor as third-party beneficiaries of Section 22, having the right to enforce Section 22.

**25.13** laws provisions thereof to the extent such principles or rules would require or permit the application of the laws of any jurisdiction other than those of the State of Utah.This Agreement and all exhibits and schedules attached hereto, and all matters arising out of or relating hereto, whether sounding in contract, tort, or statute, are governed by, and construed in accordance with, the laws of the State of Utah, United States of America, without regard to the conflict of

**25.14** Each Party irrevocably and unconditionally agrees that it will not commence any action, litigation, or proceeding of any kind whatsoever against the other Party in any way arising from or relating to this Agreement or any exhibits or schedules attached hereto, or any contemplated transaction, including, but not limited to, contract, equity, tort, fraud, and statutory claims, in any forum other than the state courts of the State of Utah sitting in Salt Lake City, and any appellate court from any thereof. Each Party irrevocably and unconditionally submits to the exclusive jurisdiction of such courts and agrees to bring any such action, litigation, or proceeding only in the state courts of the State of Utah sitting in Salt Lake City. Each Party agrees that a final judgment in any such action, litigation, or proceeding is conclusive and may be enforced in other jurisdictions by suit on the judgment or in any other manner provided by law.

**25.15** EACH PARTY ACKNOWLEDGES AND AGREES THAT ANY CONTROVERSY THAT MAY ARISE UNDER THIS AGREEMENT OR ANY EXHIBITS OR SCHEDULES ATTACHED HERETO IS LIKELY TO INVOLVE COMPLICATED AND DIFFICULT ISSUES AND, THEREFORE, EACH SUCH PARTY IRREVOCABLY AND UNCONDITIONALLY WAIVES ANY RIGHT IT MAY HAVE TO A TRIAL BY JURY IN RESPECT OF ANY LEGAL ACTION ARISING OUT OF OR RELATING TO THIS AGREEMENT OR ANY EXHIBITS OR SCHEDULES ATTACHED HERETO, OR THE TRANSACTIONS CONTEMPLATED HEREBY.WOULD NOT SEEK TO ENFORCE THE FOREGOING WAIVER IN THE EVENT OF A LEGAL ACTION, (b) SUCH PARTY HAS CONSIDERED THE IMPLICATIONS OF THIS WAIVER, (c) SUCH PARTY MAKES THIS WAIVER VOLUNTARILY, AND (d) SUCH PARTY HAS BEEN INDUCED TO ENTER INTO THIS AGREEMENT BY, AMONG OTHER THINGS, THE MUTUAL WAIVERS AND CERTIFICATIONS IN THIS SECTION 25.15. EACH PARTY CERTIFIES AND ACKNOWLEDGES THAT (a) NO REPRESENTATIVE OF THE OTHER PARTY HAS REPRESENTED, EXPRESSLY OR OTHERWISE, THAT SUCH OTHER PARTY

**25.16** This Agreement may be executed in counterparts, each of which is deemed an original, but all of which together are deemed to be one and the same agreement. A signed copy of this Agreement delivered by email or other means of electronic transmission is deemed to have the same legal effect as delivery of an original signed copy of this Agreement.

**25.17** period of time the occurrence is expected to continue. The Impacted Party shall use diligent efforts to end the failure or delay and ensure the effects of such Force Majeure Event are minimized. The Impacted Party shall resume the performance of its obligations as soon as reasonably practicable after the removal of the cause. In the event that the Impacted Party's failure or delay remains uncured for a period of ten (10) days following written notice given by it under this Section 25.17, the other Party may thereafter terminate this Agreement upon three (3) days' written notice.No Party shall be liable or responsible to the other Party, or be deemed to have defaulted under or breached this Agreement, for any failure or delay in fulfilling or performing any term of this Agreement (except for any obligations of Lessee to make payments to Lessor hereunder), when and to the extent such failure or delay is caused by or results from acts beyond the impacted party's ("Impacted Party") reasonable control, including, without limitation, the following force majeure events ("Force Majeure Event(s)"): (a) acts of God; (b) flood, fire, earthquake, or explosion; (c) war, invasion, hostilities (whether war is declared or not), terrorist threats or acts, riot or other civil unrest; (d) government order, law, or actions; (e) embargoes or blockades in effect on or after the date of this Agreement; (f) national or regional emergency; and (g) strikes, labor stoppages or slowdowns, or other industrial disturbances. The Impacted Party shall give notice within five (5) days of the Force Majeure Event to the other Party, stating the

**25.18** Lessee agrees to execute, acknowledge, deliver, file, and record, or cause to be executed, acknowledged, delivered, filed, and recorded, such further documents or other papers and to do all such things and acts as Lessor may request in furtherance of the provisions and purposes of this Agreement and the transactions contemplated hereby.

**25.19** Attorney Fees.In any action, arbitration, collection proceeding, or dispute arising out of or relating to this Agreement, the prevailing party shall be entitled to recover its reasonable attorney fees, court costs, collection costs, expert witness fees, and other expenses incurred in connection therewith, in addition to any other relief awarded.

**25.20** Privacy, Identity, and Rental Documents. Lessor may collect, receive, use, maintain, and disclose information reasonably necessary to administer the rental relationship, including identification information, driver-license information, insurance records, equipment inspection records, photographs and video, electronic or handwritten signatures, payment-processor transaction information, communications, and other records relating to the rental transaction. Such information may be used for legitimate rental administration, identity verification, equipment and public safety, payment processing and collection, fraud prevention, insurance administration, claims investigation, equipment recovery, dispute resolution, compliance with applicable law, and reasonable business recordkeeping purposes. Lessor shall use commercially reasonable measures to restrict access to rental documents and customer information to Lessor, its authorized personnel, service providers, insurers, payment processors, professional advisors, governmental authorities when legally required, and other persons having a legitimate need for such information in connection with the rental transaction, enforcement of this Agreement, or applicable law. Electronic links or other electronic methods provided for accessing, reviewing, or signing rental documents are intended solely as controlled access mechanisms and do not authorize public disclosure, redistribution, or unauthorized access to Lessor's records. Lessee shall not provide or upload complete payment-card numbers, card verification values (CVV/CVC), unrelated sensitive personal information, unlawful content, or information Lessee is not legally authorized to provide, except through a payment processor or other secure method expressly authorized by Lessor. Lessor may retain rental agreements, identification records, inspection records, photographs, signatures, insurance documentation, payment records, communications, claims records, and related documents for such period as Lessor reasonably determines necessary for legitimate business, accounting, insurance, claims, litigation, regulatory, tax, fraud-prevention, and recordkeeping purposes, subject to applicable law. Superseded or replacement documents and relevant revision or review history may be retained and associated with the applicable rental transaction when reasonably necessary for audit, dispute, insurance, litigation-hold, or other lawful purposes.

**[Signature Page to Equipment Lease]**

IN WITNESS WHEREOF, the Parties hereto have executed this Agreement as of the date first above written.

LESSOR:

URBAN COWBOY RENTALS LLC, a Utah limited liability company

---

By: _____

Name: Jason Lovato

Title: General Manager

Date: _____

LESSEE:

Jordan Sample

---

By: _____

Name: Jordan Sample

Title: Operations Manager

Phone Number: 801-555-0142

Date: _____

## SCHEDULE 1

**CREDIT CARD AUTHORIZATION FORM**

## Customer and Rental Details

**AGREEMENT**
UCR-2028-000042

**BUSINESS NAME**
High Desert Sample Services LLC

**PHONE**
801-555-0142

**STORED RENTAL SUMMARY**
Jun 10, 2028 - Jun 16, 2028

**RECORDED DEPOSIT**
$500.00

**LESSEE LEGAL NAME**
Jordan Sample

**EMAIL**
billing@example.test

**AGREEMENT BILLING ADDRESS**
4550 West Example Parkway, Salt Lake City, Utah 84104

**EQUIPMENT**
2024 Bobcat T550 Track Loader (quantity 1); Wacker Neuson RD12 Roller (quantity 1); 2025 Bobcat E35 Compact Excavator (quantity 1)

**RECORDED TOTAL**
$2,497.31

Lessee hereby authorizes Urban Cowboy Rentals LLC ("Lessor") to charge the credit card listed below for rental charges, deposits, extensions, late fees, damage charges, cleaning charges, fuel charges, transportation charges, taxes, collection costs, and any other amounts due under the Equipment Lease Agreement.

Card Type: _____

Cardholder Name: _____

### Authorization

I, _____, authorize Urban Cowboy Rentals LLC to charge the credit card identified above for all amounts due under the Equipment Lease Agreement and any related invoices, extensions, fees, damages, losses, taxes, or other charges authorized by the Equipment Lease Agreement. I understand that this authorization shall remain in effect until all obligations under the Equipment Lease Agreement have been satisfied in full. I certify that I am an authorized user of the credit card listed above.

---

Cardholder Signature: _____

Printed Name: _____

Date: _____

## SCHEDULE 2

### ADDITIONAL CHARGES AND FEES

**1.** Fuel Surcharge

Equipment shall be returned with the same fuel level as when delivered. If fuel is required to restore the equipment to its original fuel level, Lessee shall reimburse Lessor at two (2) times the actual fuel cost incurred by Lessor.

**2.** Delivery and Pickup Fees

Delivery and pickup services are available upon request and subject to availability. Delivery Fee: up to Four Dollars ($4.00) per loaded mile. Pickup Fee: up to Four Dollars ($4.00) per loaded mile. Additional charges may apply for permits, tolls, after-hours service, waiting time, difficult access, loading assistance, or special transportation requirements.

**3.** Cleaning Fees

Equipment shall be returned in substantially the same clean condition as when delivered. Exterior Cleaning: $1.00 per minute. Interior Cleaning: $1.00 per minute. Minimum Cleaning Charge: $25.00. Excessive dirt, mud, concrete, paint, asphalt, grease, oil contamination, biohazards, or other abnormal conditions may result in additional charges.

**4.** Impound Fees

If any Unit becomes subject to impound, seizure, storage, towing, or similar action during the rental period, Lessee shall be responsible for all impound fees, towing fees, storage fees, administrative fees, release fees, and any other charges necessary to recover and release the Unit. Impound fees shall be assessed in accordance with applicable Utah law and shall be payable separately from rental charges.

**5.** Recovery Services

If Lessor is required to recover, retrieve, transport, secure, repossess, or otherwise regain possession of any Unit due to impound, abandonment, accident, misuse, unauthorized use, non-payment, or any other circumstance attributable to Lessee, recovery services shall be billed at $280.00 per hour, portal-to-portal. Minimum Charge: One (1) hour. Any portion of an hour shall be billed as a full hour. Additional towing charges, storage charges, equipment charges, subcontractor charges, permit fees, mileage charges, administrative costs, and any other expenses incurred by Lessor shall also apply.

**6.** Additional Rent

All fees, charges, expenses, surcharges, costs, and amounts described in this Schedule 2 shall constitute additional rent under the Equipment Lease Agreement and shall be immediately due and payable upon demand by Lessor.

# EXHIBIT A

## EQUIPMENT

## Recorded Transaction Equipment Schedule

| Equipment | Serial / VIN | Rental period | Qty | Daily rate | Days | Amount |
|---|---|---|---|---|---|---|
| 2024 Bobcat T550 Track Loader | B57T13 3070 | Jun 10, 2028 - Jun 12, 2028 | 1 | $120.00 | 2 | $240.00 |
| Wacker Neuson RD12 Roller | WNCRD1 2AEPUM 06214 | Jun 11, 2028 - Jun 14, 2028 | 1 | $180.00 | 3 | $540.00 |
| 2025 Bobcat E35 Compact Excavator | B57920 400 | Jun 12, 2028 - Jun 16, 2028 | 1 | $225.00 | 4 | $900.00 |

Stored item note: 2024 Bobcat T550 Track Loader: Standard bucket; documented at check-out.

Stored item note: Wacker Neuson RD12 Roller: Equipment-specific inspection reference applies.

Stored item note: 2025 Bobcat E35 Compact Excavator: Trenching bucket and attachments documented at check-out.

| Unit | VIN / Serial Number |
|---|---|
| Bobcat E35 | B57920400 |
| Bobcat T550 | B57T13370 |
| Lamar 3 Axle Dump Trailer | 5RVBD1632SP139518 |
| Raw Maxx 24 Ft. Transport Trailer | 3EVBF2429S1117920 |
| Wacker Neuson Roller Compactor | WNCRD12AEPUM06214 |
| Bauer 70 lb. Pro Breaker Hammer | 370452007 |
| Central Machinery 7 HP Plate Compactor | 37719382025 |
| Hercules SDS-MAX Hammer Drill | 370452034 |
| Bosch GRL 800-20HVK Laser Level | |
| Kobalt Hand Tamper | |

# EXHIBIT B

## STIPULATED LOSS VALUES & DAMAGE WAIVER DEDUCTIBLES

| Unit | Stipulated Loss Value | Damage Waiver Deductible |
|---|---|---|
| Bobcat E35 | $87,393.74 | $2,500.00 |
| Bobcat 12" Bucket w/ Teeth | $1,561.83 | $250.00 |
| Bobcat 24" Bucket w/ Teeth | $1,878.99 | $250.00 |
| Bobcat 48" Grading Bucket | $2,115.02 | $250.00 |
| Bobcat T550 | $77,833.38 | $2,500.00 |
| Lamar 3 Axle Dump Trailer | $15,846.96 | $1,500.00 |
| Rawmax 24 Ft. Transport Trailer | $16,000.00 | $1,500.00 |
| Wacker Neuson Roller Compactor | $23,531.55 | $1,000.00 |
| Bauer 70 lb. Pro Breaker Hammer | $900.00 | $250.00 |
| Hammer Breaker Bits | $36.00 | $25.00 |
| Central Machinery 7 HP Plate Compactor | $758.07 | $500.00 |
| Hercules SDS-MAX Hammer Drill | $432.72 | $250.00 |
| SDS-MAX Masonry Chisel Bits | $42.00 | $25.00 |
| Bosch GRL 800-20HVK Laser Level | $779.75 | $500.00 |
| Kobalt Hand Tamper | $54.20 | $50.00 |

# EXHIBIT C

**RENTAL RATES AND SUGGESTED SECURITY DEPOSITS**

## Recorded Agreement Charges

| | |
|---|---|
| Rental subtotal | $1,680.00 |
| Recorded deposit | $500.00 |
| Delivery | $175.00 |
| Sales tax | $142.31 |
| **Recorded total** | **$2,497.31** |

| Equipment | Daily Rate | Weekly Rate | Monthly Rate | Suggested Security Deposit |
|---|---|---|---|---|
| Bobcat E35 | $280.00 | $1,400.00 | $3,600.00 | $1,000.00 |
| Bobcat T550 | $280.00 | $1,400.00 | $3,600.00 | $1,000.00 |
| Lamar 3 Axle Dump Trailer | $150.00 | $800.00 | $2,000.00 | $250.00 |
| Rawmax 24 Ft. Transport Trailer | $150.00 | $800.00 | $2,000.00 | $250.00 |
| Wacker Neuson Roller Compactor | $180.00 | $800.00 | $1,800.00 | $500.00 |
| Bauer 70 lb. Pro Breaker Hammer | $50.00 | $200.00 | $600.00 | $200.00 |
| Central Machinery 7 HP Plate Compactor | $60.00 | $280.00 | $900.00 | $200.00 |
| Hercules SDS-MAX Hammer Drill | $50.00 | $200.00 | $600.00 | $200.00 |
| Bosch GRL 800-20HVK Laser Level | $60.00 | $280.00 | $900.00 | $200.00 |
| Kobalt Hand Tamper | $10.00 | $40.00 | $120.00 | $50.00 |

### Security Deposit Disclosure

The security deposit amounts listed in this Exhibit C are suggested minimum security deposits and are provided for reference purposes only. Lessor may require a higher or lower security deposit at its sole discretion based upon rental duration, rental history, payment history, creditworthiness, equipment value, equipment combinations, intended use, project conditions, prior losses, insurance coverage, or other risk factors deemed relevant by Lessor.

The actual security deposit required for any rental transaction shall be the amount stated in the applicable rental invoice, rental agreement, reservation confirmation, or other written documentation provided by Lessor. Nothing contained in this Exhibit C shall limit Lessor's right to require a different security deposit amount for any rental, provided such requirement does not conflict with the terms and conditions of the Equipment Lease Agreement.

The security deposit amounts listed in this Exhibit C shall not be construed as a limitation of Lessee's liability. Lessee shall remain fully responsible for all amounts due under the Equipment Lease Agreement, including but not limited to rental charges, damage charges, stipulated loss values, cleaning fees, fuel surcharges, delivery charges, pickup charges, recovery charges, impound fees, collection costs, attorney fees, court costs, and any other amounts due under the Agreement, regardless of the amount of any security deposit collected.

# EXHIBIT D

## CONDITION, INSPECTION, AND RETURN ACKNOWLEDGMENT

### INCORPORATION AND PURPOSE

This Exhibit D is incorporated into and forms part of the Urban Cowboy Rentals LLC Equipment Rental Agreement. It provides the general contractual acknowledgment concerning the condition, inspection, acceptance, and return of rented Equipment. Equipment-specific Check-Out / Check-In Inspection Forms, photographs, invoices, Rental Schedules, and related transaction records may supplement this Exhibit D for the particular Unit. In the event of a conflict, the Equipment Rental Agreement controls unless a later written amendment expressly provides otherwise.

### CHECK-OUT CONDITION AND ACCEPTANCE

Lessee acknowledges that, before accepting possession or beginning use of the Equipment, Lessee inspected the Equipment or was provided a reasonable opportunity to inspect it and/or review the applicable Check-Out Inspection Form. Lessee agrees to promptly identify visible damage, missing equipment, accessories or attachments, unsafe conditions, hour-meter or fuel discrepancies, or other reasonably observable deficiencies. Lessee's acknowledgment of the recorded condition does not waive claims concerning latent or hidden defects that could not reasonably have been discovered through ordinary inspection.

Equipment / Unit: 2024 Bobcat T550 Track Loader (quantity 1); Wacker Neuson RD12 Roller (quantity 1); 2025 Bobcat E35 Compact Excavator (quantity 1)

Serial Number: 2024 Bobcat T550 Track Loader: B57T133070; Wacker Neuson RD12 Roller: WNCRD12AEPUM06214; 2025 Bobcat E35 Compact Excavator: B57920400 / Invoice No.: _____

Check-Out Date: _____ Time: _____

Hour Meter Out: _____ Fuel Level Out: _____

Existing Damage / Missing Items / Condition Notes: _____

_____

_____

Customer / Lessee Signature: _____ Date: _____

Urban Cowboy Rentals Representative: _____ Date: _____

### RETURN / CHECK-IN ACKNOWLEDGMENT

Upon return, Lessee acknowledges that the Equipment may be inspected by Urban Cowboy Rentals LLC and that the applicable Check-In Inspection Form, photographs, estimates, invoices, diagnostic records, or other supporting documentation may be used to document condition, newly identified damage, missing items, fuel, cleaning, recovery, repair, replacement, loss of use, or other charges authorized by the Agreement. Lessee's signature acknowledges participation in, or a reasonable opportunity to participate in, the return inspection and receipt or availability of the condition record; it does not, by itself, constitute an admission of fault or liability. Final financial responsibility shall be determined under the Equipment Rental Agreement, applicable Rental Damage Waiver terms, and applicable law.

Check-In Date: _____ Time: _____

Hour Meter In: _____ Fuel Level In: _____

New Damage / Missing Items / Return Condition Notes: _____

_____

_____

Additional Return Charges, if any: _____

Customer / Lessee Signature: _____ Date: _____

Urban Cowboy Rentals Representative: _____ Date: _____

## REPRESENTATIVE CERTIFICATION

The undersigned Urban Cowboy Rentals representative certifies that the applicable inspection record reflects the observed condition of the Equipment at the stated time to the best of the representative's knowledge.

Representative Signature: _____ Date: _____